(3) Well into the ten-month trial in the magistrate's court, gross trial irregularities were being committed which undermined the rule of law. A fundamental rule of criminal procedure is that the prosecution must disclose its evidence to the accused, including that which is unfavourable to the prosecution, so as to ensure that an innocent man is not wrongly convicted. Yet here, on 17 March 1930, one finds the prosecuting inspector having the audacity of writing directly to the magistrate to say of the arch-approver, Phonindranath Ghosh, that he 'may kindly exclude such evidence [given to the Police] that you may find inexpedient in the public interests to be furnished to the accused'. The public interest, however, is in disclosure, and nothing damages that public interest than the realization that the magistrate is working with the prosecution behind the back of the accused and his lawyers (Lahore Archives, previously unpublished).